

Maryland bars personal-data price hikes

Signal	On April 28, 2026, Maryland signed a ban on large grocers and food delivery apps using a shopper’s personal data to charge that shopper more. It took effect October 1.
Read	Covered grocers and delivery apps may no longer raise a shopper’s price using that shopper’s personal data. Discounts, loyalty prices and store-wide price changes stay legal. Shoppers get no new price label. Governor Wes Moore’s stated reason at signing: companies use analytics “against us to make record profits.”
Cost	Per the state’s fiscal note for SB 387, enforcement costs about \$325,000 a year. Sellers face no filing or registration; fines go to the state only for violations left unfixed. Maryland Retailers Alliance: “not a common industry practice for us at all.”

The simple version

Think of Uber surge pricing on a gallon of milk. Raising the price for everyone at 5 pm stays legal. Raising it only for you, because your data says you will pay, is banned. The rule covers stores of 15,000 square feet or more that sell sales-tax-exempt food, and third-party food delivery services; smaller stores are exempt.

National test: same item, up to 23% apart



National Instacart test by Consumer Reports and Groundwork Collaborative, Dec 2025; context on the practice, not a Maryland finding. Hatched = illustration.

The money walk

1. Context \$1,200 Researchers’ estimate of a family’s yearly swing in a national Instacart test. Instacart disputes it.	2. Oct 1, 2026 No filing Covered stores and apps stop personal-data price hikes. No filing or registration.	3. Notice 45 days Attorney General notice comes first. Fix it and no case is filed.	4. Fine \$10,000 Per uncured violation; \$25,000 per repeat, per the state’s fiscal note for SB 387.	5. Who enforces The state Attorney General, after notice. MoCo Show reports no private lawsuits.
---	--	--	---	---

The alternative, side by side

Maryland: ban it		New York: label it	
Personal-data price hike	Banned	Personal-data price hike	Allowed, with a label
Shopper sees	Nothing new	Shopper sees	“Set by an algorithm using your personal data”
Fine per violation	Up to \$10,000, per fiscal note	Fine per violation	Up to \$1,000
Who carries the risk	Grocer or app	Who carries the risk	Shopper reads, then decides

Lowest price, indexed	Widest same-item gap	Shoppers in the national test	= Highest price Est
\$1.00	23%	437	\$1.23

How the state rules differ

State rules on personal-data pricing, by date in force. Shelf screens = electronic price tags. Darker = goes further in that column.

	Personal-data pricing	Who it covers	Shelf screens	In force
New Jersey	Regulated; terms not given	Groceries and essentials	New ones paused	Aug 2027
Connecticut	Banned, no fix window	All retailers, delivery apps	Not reported	2027*
Maryland	Higher prices banned	Big grocers, delivery apps	Untouched	Oct 2026
New York	Allowed, with a label	Any seller	Not in the record	Nov 2025

* Connecticut per FPF and InfoLawGroup analyses; statute not read, and they differ on the start date (Feb 1 or Jul 1, 2027). New Jersey signed Jul 23, 2026; its pause on new shelf screens starts Feb 1, 2027.

Federal	A federal bill to ban shelf screens at large grocers was introduced in February 2026; it remains a proposal.
Next	More than 40 bills in at least 24 states as of August 2026, most still proposals. UFCW (United Food and Commercial Workers) says lawmakers in at least 12 states have joined its campaign.

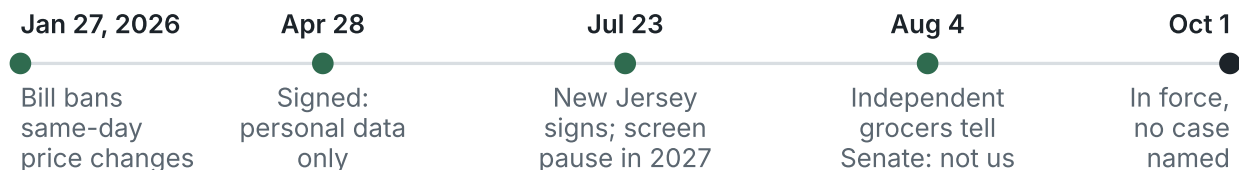
What it looks like for you: the public rules

Covered if	Any Maryland store of 15,000 square feet or more that sells tax-exempt food, or any third-party food delivery service.
Paperwork	None. No filing or registration.
Fix ("cure") window	45 days after a notice from the Attorney General's Consumer Protection Division.
Penalty	Up to \$10,000 per violation, \$25,000 per repeat, per the state's fiscal note for SB 387. State action only; MoCo Show reports no private lawsuits.
Still legal	Shelf screens, at \$5 to \$20 for a standard label; the union said it sought a screen ban and was "unsuccessful."

What each side leaves out

Side	Claim	Omission	What settles it
The governor	"We are going to protect our people" (signing, Apr 28, 2026)	A Maryland case: state leaders "have not pointed to specific instances occurring in Maryland" (WYPR, Apr 28, 2026)	A state notice naming a Maryland store or app; none as of Oct 4
Grocer groups	Independent grocers "are not doing surge pricing"; shelf screens do not set prices per person (Senate hearing, Aug 4, 2026)	How far shelf screens have spread: over two-thirds of food retailers used them in early 2026, up from 47% a year earlier	Store pricing records, which the law requires no one to file
Headlines	"Maryland bans dynamic pricing"	The signed law bans only higher prices set from personal data; shelf screens are untouched	The chapter text, already settled

The twist: the ban shrank before it passed



Fact The signed law lists 10 exceptions, including promotions, loyalty-program prices, cost-based differences such as shipping, subscriptions, and any price a shopper agrees to in exchange for their data.

The everyday version

Airlines and hotels change prices all day, and travelers accept it. In February 2024, Wendy's chief executive described \$20 million in new digital menu boards and, separately, dynamic pricing tests; headlines called it "surge pricing," and on February 28 the company said "Wendy's will not implement surge pricing." Instacart halted its tests by December 22, 2025, after the December 16 study.

Where it breaks: airline and burger prices move for everyone at once; groceries are a weekly necessity with few substitutes, and Maryland targets a price set by who you are, not when you shop.

Three questions for an executive

How many of our prices, online or in store, use any shopper-level data as an input?

Then: map each one in Maryland to one of the 10 exceptions, or switch it off before a notice arrives.

How many of our Maryland stores clear 15,000 square feet, and what share of our sales there run through delivery apps?

Then: that is your Maryland scope; Connecticut and New Jersey cover more, so check them before 2027.

How many days would we need to show, from logs, what set one shopper's price?

Then: if more than 45, you cannot prove a fix inside the cure window; fund price-input logging now.

What to watch

Mid-Nov 2026 First possible 45-day fix window ends. A named Maryland grocer or app contradicts retailers' "not common" statement; none leaves it standing.

Jan 2027 Maryland's 2027 session opens. A shelf-screen bill would widen the law; no bill keeps it to personal data.

Your judgment finishes this brief

This brief can't be perfect. Some human judgment shaped what it says and what it leaves out. It's built for learning, so engage with it: apply your own critical thinking, decide what's right or wrong, and ask the follow-up questions. Those calls are yours.